

24STCV17743 24STCV17743

County: los-angeles

Division: Civil Law and Motion

Department: 511

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Case Number: 24STCV17743 Hearing Date: July 29, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: July

29, 2026

CASE NAME: Anthony

Arline v. Shirley Arline-Carter

CASE NO.: 24STCV17743

MOTION

FOR LEAVE TO FILE A CROSS-COMPLAINT

MOVING PARTY: Defendant

Shirley Arline-Carter

RESPONDING PARTY(S): None

REQUESTED RELIEF:

1. An

order granting leave to file a cross-complaint against Don'ta Lamont Arline, Kevin Rachon Arline, Sr., and Golden Rule Lending, LLC.

TENTATIVE RULING:

1. Motion

for leave to file a cross-complaint is GRANTED;

2. Defendant

to file their proposed cross-complaint within 7 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On July 17, 2024, Plaintiff Anthony Arline (Plaintiff) filed a complaint against Defendant Shirley Arline-Carter (Defendant) with causes of action for: (1) recovery of property wrongfully transferred; (2) conversion; (3) unjust enrichment; and (4) order compelling accounting.

According to the complaint, Plaintiff is a beneficiary of a trust, Defendant is the trustee of that trust, and has refused to make distributions pursuant to the trust provisions. The distribution is of real property located at 1553 E. 110th Street, Los Angeles, California.

On May 20, 2025, Defendant filed an answer.

On June 8, 2026, Defendant filed the instant motion for leave to file a cross-complaint. Oppositions were due on or before July 16, 2026. As of July 24, 2026, the court has not received any opposition.

LEGAL STANDARD:

A cross-complaint may be either permissive or compulsory.

Compulsory cross-complaints are based on allegations arising out of the same transactions or occurrences as the causes of action which the plaintiff alleges in his or her complaint. (Code Civ. Proc., (CCP) § 426.10, subd.

(c).) Compulsory cross-complaint causes of action must exist at the time an answer to the original cross-complaint is required. (CCP § 426.30, subd. (a).)

All other cross-complaints are permissive. (CCP § 428.10.) If a party fails to file any cross-complaint before or when they file an answer, they must move the court for leave to file a cross-complaint. (CCP § 428.50.) The court "shall" grant leave to file a compulsory cross-complaint, as long as the party demonstrates that, notwithstanding being late, the motion for leave is brought in good faith. (CCP § 426.50.) The court "may" grant leave to file a permissive cross-complaint "in the interest of justice at any time during the

course of the action.” (CCP § 428.50, subd. (c).)

A policy of liberal construction of section 426.50 to avoid forfeiture of causes of action is imposed on the trial court. (Silver Orgs. v. Frank (1990) 217 Cal. App. 3d 94, 98-99.) A motion to file a cross-complaint at any time during the course of the action must be granted unless substantial evidence of bad faith is demonstrated. (Ibid.)

ANALYSIS:

Defendant contends leave to file a cross-complaint is warranted because the proposed cross-complaint arises out of the same transaction or occurrence as Plaintiff's complaint, the interests of justice support leave to file the cross-complaint, and Plaintiff will suffer no undue prejudice while denial will substantially prejudice Defendant.

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Here, leave to file a cross-complaint is warranted. First, the proposed cross-complaint is based on the same transaction or occurrence as the underlying complaint – conveyance of the property with street address 1553 East 110th Street, Los Angeles, California. Indeed, the proposed cross-defendants are part of the property dispute concerning the APN, what Defendant transferred via quitclaim deed, or are currently the titleholder of the subject property. (Declaration of John H. Oh ¶¶ 4-5.) Second, there is no evidence of bad faith in seeking this relief. Finally, there is no evidence of undue prejudice to Plaintiff because he did not oppose this motion.

Accordingly, the court GRANTS Defendant's motion for leave to file a cross-complaint.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion

for leave to file a cross-complaint is GRANTED;

2. Defendant

to file their proposed cross-complaint within 7 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 29, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court